

Public service versus the market ten years on: reflections on Critical Theory and the debate on broadcasting policy in the UK

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A decade ago *Screen* published Nicholas Garnham's 'Public service versus the market'.¹ The article set new terms for academic discussion of broadcasting policy in the UK and introduced Jürgen Habermas's work to British communication and media studies. The dichotomy, between public service and the market, which Garnham's article constituted, underpinned broadcasting policy studies over the next decade, a decade in which, as Tracey states,² most of the intellectual running was made by market theorists but which saw two major approaches to discussion and defence of public service broadcasting, one, fundamentally empirical, rooted in an analysis of and apology for the actual historical practice of European public service broadcasters³; and the other, fundamentally theoretical, rooted in Critical Theory and in Habermas's work in particular.⁴ The differences between these approaches can perhaps best be characterized by stating that the empiricists are concerned with public service broadcasters and the idealists with public service broadcasting. One is firmly bound to the concrete practice of institutions and the other to an ideal. In consequence the visions of proponents of public service broadcasting sometimes seem fanciful creations, bearing little relation to the institutions familiar to European viewers and listeners, while the actual empirical practices of public service broadcasters sometimes seem difficult to reconcile with the ideals of public service broadcasting.

¹ N. Garnham, 'Public service versus the market', *Screen* vol. 5, no. 1 (1983).

² M. Tracey, 'Our better angels: the condition of public service broadcasting', *Media Information Australia* no. 66 (1992).

³ See J. Blumler (ed.), *Television and the Public Interest: Vulnerable Values in West European Broadcasting* (London: Sage, 1992).

⁴ See Garnham, 'Public service versus the market'. N. Garnham, 'The media and the public sphere', in P. Golding et al. (eds), *Communicating Politics* (Leicester: Leicester University Press, 1986). N. Garnham, 'The media and the public sphere', in C. Calhoun (ed.), *Habermas and the Public Sphere* (Cambridge, MA: MIT Press, 1992). J. Keane, *The Media and Democracy* (Cambridge: Polity, 1991).

In consequence, as Negrine has observed,⁵ a lack of clarity often characterizes the advocacy of public service broadcasting. Too often it is unclear whether broadcasting or broadcasters are being defended; whether arguments are rooted in an inductive analysis or whether they articulate an 'ideal type', defined deductively. Are the criteria employed in discussion of public service broadcasting descriptive or evaluative, normative or aspirational?

If it is actual institutional practice which is at stake then the arguments can be verified or falsified through empirical and historical scrutiny. But if their referent is not actual practice, but rather an ideal, then the arguments have to be interrogated on the basis of their theoretical presuppositions. In either case, difficulties arise from a categorical differentiation of market and public service. For the similarities between both the theories advanced by proponents of market and public service broadcasting and the institutional histories of market and public service regimes are no less striking than the differences between them.

The difficulty of making categorical distinctions between public service and market principles is particularly striking in respect of the United Kingdom. For the UK has had the longest history of mixed market/public service broadcasting of all European states (and, with the exception of Canada and Australia, probably the longest experience of a mixed system of any state). But however fuzzy the distinctions may be, a theoretical approach offers a better basis for the formulation of broadcasting policy and for analysis and evaluation of the historical performance of public service broadcasters than does the rival empirical approach. For an empirical approach can only offer a measuring rod derived from the aggregate historical performance of public service broadcasters themselves. Whereas concepts generated independently of the institutions and practices which they measure make it possible to transcend the dead weight of historical 'is's' and address the fundamental issues of 'oughts'. It is to a consideration of the theoretical case made by UK scholars and proponents of public service broadcasting that I now turn.

The case for public service broadcasting

Habermas (mediated by Garnham), became the major theoretical point of reference for proponents of public service broadcasting in Britain in the 1980s, when the concept of 'the public sphere', which Garnham had first used in 'Public service versus the market' (and developed in his 1986 paper, 'The media and the public sphere'), became part of the common currency of the academic debate on broadcasting policy.⁶ Habermas provided proponents of public service broadcasting with radically new arguments. Before

6 See *inter alia* Keane *The Media and Democracy* and H. Wilson (ed.) *Australian Communications and the Public Sphere* (Melbourne: Macmillan 1989).

Garnham's brokering of Habermas to the academic community the most fully elaborated rationale for public service broadcasting put forward in the UK was to be found in the Pilkington Report.⁷ The Pilkington Committee's vision was rooted in the traditional ethos of British broadcasting, stemming from Reith's BBC, but its neo-Arnoldian, and thus rather authoritarian, vision informed the theory and practice of British broadcasting until the 1980s, when both a neo-Habermasian rationale for public service was articulated and a cogent alternative vision of the structure and role of broadcasting was put forward in the Report of the Committee on Financing the BBC – the Peacock Report.⁸

Pilkington believed that the audience for broadcasting was vulnerable and should be protected. Radio and, in particular, television (which the Committee judged to be 'the main factor in influencing the values and moral standards of our society')⁹ needed to be organized so that viewers (and listeners) were protected, not only from the baleful influence of a powerful medium, but also from themselves and their own tastes and desires. 'To give the public what it wants', Pilkington stated, 'seems at first sight unexceptionable'. But it is 'patronizing and arrogant'.¹⁰ For to do so is to assume that viewers and listeners not only know what they want but also want what is good for them. Such a view, Pilkington argued, mistakes 'what the public wants . . . for the public interest'.¹¹ Formulations such as these make it hard to resist the view that Pilkington believed broadcasting required to be controlled by Platonic Guardians, acting as servants of the public but certainly not expected to take directions from them.

Pilkington's was a very Arnoldian vision, not surprisingly, for Arnold's vision of culture as 'the best that has been thought and said in the world', and as an emancipator, 'the great help out of our present difficulties',¹² has historically underpinned broadcasting in the UK. Arnold's ideas, for example, lie behind the well known definition of public service broadcasting by a former Director General of the BBC, Sir William Haley, as a kind of cultural mountaineering,¹³ and behind the less well known, but still eloquent, statements of other Directors General of the BBC, such as Charles Curran and Alasdair Milne. Curran asserted that the BBC's responsibility was to educate 'the audience to make the choices which have been communicated to it. We must not allow ourselves to slip into the despairing attitude of seeing ourselves as casting pearls before swine . . . The course of wisdom is for us to see ourselves as casting our pearls before people who have been taught by us to appreciate their value'.¹⁴ And Milne, in a particularly messianic version of the BBC's traditional 'transmission mentality', suggested that 'broadcasting is not a matter of one person sending a signal to another . . . it is a process of scattering and thus sowing seed far wide [sic]. Some will fall on stoney ground and some on

⁷ *Report of the Committee on Broadcasting* (Pilkington), Cmnd 1753 (London: HMSO, 1962).

⁸ *Report of the Committee on Financing the BBC* (Peacock), Cmnd 9824 (London: HMSO, 1986).

⁹ Pilkington Report para 42.

¹⁰ *Ibid.* paras 44–48.

¹¹ *Ibid.* para 408.

¹² M. Arnold, *Culture and Anarchy* (1869) (Cambridge: Cambridge University Press, 1963), p. 6.

¹³ Haley argued for a broadcasting policy which would lead people upwards – the listener being induced through the years increasingly to discriminate in favour of the things that are more worthwhile. Each programme at any given moment must be ahead of its public. Quoted in A. Smith (ed.), *British Broadcasting* (Newton Abbot: David and Charles, 1974), pp. 83–4.

¹⁴ Quoted in Smith, *British Broadcasting*.

fertile ground. Broadcasting means that the sower waits to see what grows'.¹⁵

Haley, Curran and, as the Peacock Committee recognized, Milne clearly give voice to the authoritarian side of the British philosophy of public service broadcasting. Here too there are notable echoes of Arnold. The authoritarian dimension of Arnold's doctrines of sweetness and light are less often recognized than the emancipatory claims he made for culture. But Arnold had a clear, very Pilkingtonian, conception of the interdependence of culture and political order. He wrote:

A state in which law is authoritative and sovereign, a firm and settled course of public order, is requisite if man is to bring to maturity anything precious and lasting now or to found anything precious and lasting for the future. Thus, in our eyes, the very framework and exterior order of the state, whoever may administer the state, is sacred; and culture is the most resolute enemy of anarchy, because of the great hopes and designs for the state which culture teaches us to nourish.¹⁶

16 Arnold *Culture and Anarchy*
p. 204

It is easier to trace the influence of Matthew Arnold on public service broadcasting than it is to trace the influence of Critical Theory. In this sense a discussion of Habermas and the British neo-Habermasians, and their role in broadcasting policy, is a strictly academic project. In the context of a journal issue devoted to Critical Theory and its pertinence to the mass media it is particularly salutary to recognize how little influence Habermas and other Critical Theorists have actually had on the principles and practice of public service broadcasting in the United Kingdom. However, although a neo-Habermasian influence on UK broadcasting policy has yet to be realized, its potential importance cannot be doubted. For the neo-Habermasians both anticipated and responded to a change in the terms in which UK broadcasting policy was discussed. Publication of the Peacock Report signalled a radical change in the superordinate values involved. Peacock's proposals were based on libertarian values rather than on the authoritarian values in which the Pilkington Report was grounded. They constituted a particularly powerful challenge to the intellectual and institutional hegemony of public service broadcasting and its proponents. The discovery of Habermas and the possibility his work offered for the development of a libertarian rationale for public service broadcasting was therefore both timely and necessary.

Thus, although Garnham's 1983 article was titled 'Public service versus the market' (and the UK broadcasting policy debate of the last decade does appear to have been conducted by irreconcilable antagonists), important values are now shared by proponents of public service and market principles. Habermas, in other words, offered proponents of public service broadcasting the emancipatory

and libertarian arguments which they needed to meet and challenge the powerful libertarian arguments of the marketeers.¹⁷

The neo-Habermasian defence of public service broadcasting

Garnham took Habermas's notion of the public sphere¹⁸ from a brief essay (originally an encyclopaedia article) first published in English in 1974 in *New German Critique* (and later reprinted in Mattelart and Siegelaub, the source which Garnham cited).¹⁹ Habermas's book, *Strukturwandel der Öffentlichkeit*, was first published in German in 1962 (a translation was published in the UK in 1989),²⁰ and it seems appropriate, therefore, to re-examine the ideas which Garnham advanced a decade ago by reference to a fuller version of Habermas's arguments than that available in the seven page essay on which Garnham drew.

Garnham argued that contemporary emphases on market, rather than public service, mechanisms for the organization of broadcasting were inimical to the public interest. For, he claimed, public service principles of organization are superior

to the market as a means of providing all citizens, whatever their wealth or geographical location, equal access to a wide range of high-quality entertainment, information and education, and as a means of ensuring that the aim of the programme producer is the satisfaction of a range of audience tastes rather than only those tastes that show the largest profit.²¹

In contrast, the market led to diminished diversity, to a reduction in the number of enterprises which control (or at least very strongly influence) the production and circulation of information and culture, and to inequitable relationships between dominant, metropolitan enterprises and subordinate, peripheral entities. These market driven inequities in turn sustained pervasive and deep rooted social inequality which technological change promised, contrary to the libertarian and libratory rhetoric of its advocates, to accelerate.

However, Garnham also argued, persuasively, that the prevailing State/Market conceptual dualism had stultified debate. He therefore called for a third term, 'the public sphere', so as to escape that sterile antinomy, and to identify a 'space for a rational and universalistic politics distinct from both the economy and the State'.²² The term 'public sphere' was explicitly borrowed from Habermas but the triadic system which Garnham proposed is a common twentieth-century intellectual trope. Toennies, for example, saw three realms (markets, states and public opinion), and Althusserian Marxists have also adopted a triadic model, with the political, the economic and the ideological making up the social whole. Garnham was not simply expressing a preference for threes

¹⁷ See for example the Peacock Report. M. Friedman and R. Friedman *Free to Choose* (New York: Avon, 1981). S. Brittan 'The fight for freedom in broadcasting', *Political Quarterly* vol. 58, no. 1 (1987).

¹⁸ An awkward translation of Habermas's term *Öffentlichkeit* but one which has become so sanctified by use that it is inescapable. Public forum might have been better than public sphere.

¹⁹ J. Habermas 'The public sphere', *New German Critique* no. 3 (1974), reprinted in A. Mattelart and S. Siegelaub (eds) *Communication and Class Struggle* (New York: International General, 1979).

²⁰ J. Habermas *The Structural Transformation of the Public Sphere* (Cambridge: Polity, 1989).

²¹ Garnham 'Public service versus the market', p. 120.

²² *Ibid.* pp. 106–7.

rather than twos, or for an abstract third categorical field intellectually distinct from the terms 'state' and 'market' He was advocating what he, and others, have designated the institutional embodiment and guarantor of the modern public sphere: public service broadcasting.²³ Public service broadcasting is, Garnham argued, an institutional practice which mediates between political and corporate control and is bound neither by the imperatives of profit maximization nor by the maximization of political power

Several problems arise from this First, whilst a third term conceptually mediating between state and market may be intellectually productive and correspond to a distinctive ethos in (at least some) broadcasting institutions at (some) moments in history, the notion of the public sphere helps only to a limited extent when concrete questions of broadcasting policy and organization arise For how is broadcasting to be funded if not by either the state or the market?²⁴ How are broadcasters and broadcasting institutions to be responsive to their users if not via the institutions of state and market? The difficulties of concretizing an autonomous public sphere doubtless explain why (as reviewers have remarked) Keane's treatise has so few specific recommendations for institutional change.²⁵

Second, the grounding of arguments for public service broadcasting in Habermas's work is curious Habermas's *Strukturwandel der Öffentlichkeit* may have been written in a society where broadcasting services were provided by perhaps the most perfect form of public service broadcasting yet institutionalized, but it mentions broadcasting hardly at all. When Habermas does refer to broadcasting he does so with something close to complete disdain, and unequivocally asserts the inferiority of the audiovisual media to print media as a basis of rational understanding and democratic exchange:

Radio, film and television by degrees reduce to a minimum the distance that a reader is forced to maintain toward the printed letter – a distance that required the privacy of the appropriation as much as it made possible the publicity of a rational-critical exchange about what had been read. With the arrival of the new media the form of communication as such has changed, they have had an impact, therefore, more penetrating (in the strict sense of the word) than was ever possible for the press Under the pressure of the 'Don't talk back!' the conduct of the public assumes a different form. In comparison with printed communications the programs sent by the new media curtail the reactions of their recipients in a peculiar way. They draw the eyes and ears of the public under their spell but at the same time, by taking away its distance, place it under 'tutelage', which is to say they deprive it of the opportunity to say something and to disagree.²⁶

²³ See for example Keane *The Media and Democracy*

²⁴ An answer often given in the UK and other western European countries is 'via the licence fee' However licence fees are simply a tax (and a particularly regressive tax) under another name

²⁵ Keane *The Media and Democracy* See also P. Scannell's review in *Media Culture and Society*, vol. 14, no. 2 (1992)

²⁶ Habermas *The Structural Transformation of the Public Sphere* pp. 170–1

Unpromising ground on which to construct a defence of public service broadcasting! Moreover, there are problems with Habermas's starting point, notably with his contention that there was once a golden age when a public sphere, a forum for debate, exchange and rational collective decision making existed – none of the historically concrete candidates (the Athenian agora, the England of the bourgeois coffee shop, the New England town meeting) seem particularly convincing.²⁷ Rather as Marcuse sentimentalized nature (and anathematized modernity) in his comparison of 'love making in a meadow and in an automobile, on a lovers' walk outside the town walls and on a Manhattan street'²⁸ so Habermas sentimentalizes the coffee house, and even if we were to put this to one side, the economic base of the eighteenth-century coffee house (or even the twentieth-century Cafe Laumer), is not generalizable to the twentieth-century mass media. Precisely Habermas's point, but one which has not been sufficiently recognized by the neo-Habermasians who, in spite of their pertinent recognition of the 'problem raised by all forms of mediated communication, namely, how are the material resources necessary for that communication made available and to whom?'²⁹ still invoke public service broadcasting as a mediation between the jungle of the market and the tyranny of the state without showing how it can be independently funded

Fraser's designation of the idea of the public sphere as a 'conceptual resource'³⁰ identifies a more promising basis for an appropriation of Habermas by proponents of nonmarket broadcasting (and one more in keeping with the fundamentally deductive conceptual strategies of the British neo-Habermasians). But there are limits to the power even of 'conceptual resources'.

Broadcasting and the public sphere

The difficulties of institutionalizing a broadcasting public sphere is clearly demonstrated by the case of Habermas's Germany, in which a broadcasting system was established on unequivocally public service lines and in 'conditions that were immensely favourable to an independent public broadcasting system'.³¹ The German Constitutional Court has thus held that there can be no involvement by the federal state in the organization of broadcasting, and that all significant social groups should participate in its governance, and yet political parties have still been able to shape broadcasting to serve their, rather than the public's, interest.³² Indeed Habermas's etymological discussion of the terms 'public' and 'private' shows how intimately connected were the German concepts of 'public' and 'political authority'. As he states, '“lordly” and “publicus” were used synonymously, “publicare” meant to claim for the lord’.³³

²⁷ For an excellent historically grounded critique see M. Schudson 'Was there ever a public sphere? If so when?' in Calhoun *Habermas and the Public Sphere*

²⁸ H. Marcuse *One Dimensional Man* (1964) (London: Abacus 1972) p. 70

²⁹ Garnham 'The media and the public sphere' p. 361

³⁰ N. Fraser 'Rethinking the public sphere: a contribution to the critique of actually existing democracy' in Calhoun *Habermas and the Public Sphere* p. 110

³¹ H.-G. Falkenberg 'No future? A few thoughts on public service broadcasting in the Federal Republic of Germany' *Media Culture and Society* vol. 5 no. 3/4 (1983) p. 235

³² See R. Collins and V. Porter *WDR and the Arbeiterfilm* (London: BFI 1981)

³³ Habermas *The Structural Transformation of the Public Sphere* p. 6

European public service broadcasters' commitment to a public sphere has, then, been Janus-faced. Their commitment to informing and educating their public has too often led them to serve an audience of their own imagination. Rather than a democratic public sphere, in which the actual experience and interest of a real empirical public is represented, they have addressed the experience and interests, the public sphere, of elites. European public service broadcasting was a 'top down' broadcasting service. It constructed an idealized and reified public, to which it represented a public sphere of broadcasters' imagination. 'Bottom up' services, which gave voice to a real public (or, to use Reith's term, publics), and represented a demotic and genuinely democratic public sphere were conspicuous by their absence.

It can further be noted that whilst public service broadcasting may have embodied (but not in all jurisdictions and at all times) a genuine third way between state and market, it has not established a genuine public sphere, nor are the established structures of public service broadcasting necessarily best fitted to the realization of some future public sphere. It is difficult to reconcile Garnham's claims for the success of public service broadcasting in satisfying audience tastes with the dramatic loss of audience experienced by European public service broadcasters when they lost their national monopolies and faced commercial competition.

Indeed, what Tracey calls public service broadcasting's recognition of 'the public as audience'³⁴ did not come about spontaneously but through competition with commercial broadcasting, through, that is, public service broadcasting *in and with* the market. As Massimo Fichera (formerly a Vice President of RAI and latterly Chief Executive of Euronews) has stated, RAI won back its audience and achieved 'a fruitful balance between market forces and public service requirements' *through*, and not in spite of, its competition with Berlusconi.³⁵

Here too Habermas's etymological discussion is useful. He points out that just as 'public' and 'lordly', the public sphere and the state, were irrevocably intertwined, so too the cultural manifestation of the emergent public sphere, a growing 'representative publicness', had its roots in the culture of both the nobility and the bourgeoisie. The culture of the emergent public sphere was an elite culture (albeit rooted in the tastes and experience of the new as well as the old upper classes); if the 'humanistically cultivated courtier replaced the Christian knight' little change is likely to have been apparent to those enjoying membership of neither courtly nor merchant classes.³⁶ The common man was not the same as the educated man and the culture of the 'public' was not that of the 'mass'. The only way of making it so was (as Matthew Arnold enjoined) through education, a role which public service broadcasting has customarily performed and which has left it vulnerable to demotic and democratic critique.

³⁴ Tracey 'Our better angels' p. 21

³⁵ In 1985 RAI's share of the Italian prime time audience was 17.44% and Fininvest's (Berlusconi) 50%. In 1989 RAI had a prime time share of 49.09% and Fininvest 31.08%. See M. Fichera 'The new self confidence in public service broadcasting in Italy', *European Broadcasting Union Review*, vol. 40, no. 3 (1989), pp. 22-3.

³⁶ Habermas *The Structural Transformation of the Public Sphere* p. 9.

and to loss of audiences, thus compromising its legitimacy, particularly when alternative services have been available.

Bauman has argued that Habermas describes a 'society shaped after the pattern of a sociology seminar, that is, that there are only participants and the one thing that matters is the power of argument'.³⁷ No more than life is broadcasting reducible to the condition of a sociology seminar and it was the earnest attempts of European public service broadcasters to shape broadcasting to a condition of a seminar that gave their competitors the opportunity to offer viewers a more demotic and carnivalesque programme diet, to tempt audiences away from the seminar to the funfair.

In 'Public service versus the market', Garnham identified the public and private spheres as antithetical, and argued that the private sphere is expanding at the expense of the public sphere as 'commodity exchange invades wider and wider areas of social life'.³⁸ For Garnham what differentiates the private and public spheres is ownership. The private sphere is a sphere of private ownership where the privileged have appropriated discursive space which was formerly public. This line of argument suggests that discursive space is a finite resource, over which private and public spheres compete, and that the growth of the private sphere is analogous to the private enclosure of common land. But Habermas contends that the historical expansion of the private sphere was liberating, as activities which had once been part of the public sphere were privatized, and the domain of personal autonomy increased. For Habermas the secularization of society, whereby religion became a private matter, was a powerful instance of the *desirability* of the appropriation of the public sphere by the private.³⁹

For Habermas, then, the privatization of society was the means whereby a public sphere came into existence: 'The bourgeois public sphere could be understood as the sphere of private individuals assembled into a public body', and he suggests explicitly that 'Today, newspapers and magazines, radio and television are the media of the public sphere'.⁴⁰ However, he does *not* specify that public ownership of the media is necessary to (or private ownership incompatible with) a well functioning public sphere. Indeed, he apparently believes that 'the liberal public sphere took shape in the specific historical circumstances of a developing market economy'.⁴¹

The suggestions that the privatization of the public sphere was positive, that a public sphere might be delivered by the market and privately owned institutions, have evoked few sympathetic echoes from British neo-Habermasians. Keane, for example, emphatically rejects libertarian claims that organization of the media (including broadcasting) on a market basis extends freedom, arguing that 'liberty and equality are unsafe' in market liberalism, that public service media and market liberalism are inimical and that, therefore, public service media 'should attempt to counter head-on the market

³⁷ Z. Bauman *Intimations of Post-Modernity* (London: Routledge 1992) p. 217

³⁸ Garnham 'Public service versus the market' p. 121

³⁹ Habermas 'The public sphere' p. 51

⁴⁰ *Ibid.* p. 49

⁴¹ See Thomas McCarthy's introduction to Habermas *The Structural Transformation of the Public Sphere* p. xi

liberal strategy of the free market guided by the tough state'.⁴² For Keane the history of the media is not one of whiggish progressivism but one of oligarchy camouflaged under a rhetorical frosting of libertarianism. Murdock suggests similarly that 'technological change and privatization policies are creating massive communication conglomerates with an unrivalled capacity to shape the symbolic environment which we all inhabit', and, in consequence, 'an essential resource for developing and deepening democracy' is being denied to media users.⁴³

The obvious importance of these rival claims concerning private and public media demands that they be tested both empirically and theoretically. Are there actual instances of the public sphere delivered by privately owned institutions? And if not is their absence necessary or contingent? Could a public sphere delivered by the market and privately owned institutions exist in different circumstances? *Prima facie* instances of a market public sphere (the possibility theoretically established by Habermas) can be found. The UK's elite national press, for example, comprises five daily newspapers each owned by a different corporation and each of which has a distinctive political position (albeit, of course, within the framework of the UK's parliamentary democracy and capitalist economy). But it is certainly more difficult to identify a comparable case in broadcasting. An obvious candidate is the UK ITV system in its pre-1990 Broadcasting Act form; but this example need not delay us too long, for the ITV system was very highly regulated and built around a system of monopolies. Certainly it was privately owned (and very profitable for its dominant members), but it satisfied few of the criteria which neoclassical economists have defined as characteristic of a well functioning competitive market.

We have inherited a debate structured around three nodes, the state, the market and a third term, the public sphere/public service broadcasting, all of which are complex and around none of which is there any clear consensus as to what is meant by them. Still less is there agreement as to how the institutions to which the terms refer are to be evaluated. What is clear is that the major participants in the debate share a common goal for broadcasting policy; the increase of human liberty. Where they differ is in their allegiance to different institutional and organizational means through which the desired end is to be secured.

Freedom to and freedom from

Established institutional interests and their ideological shield bearers have for too long sought to deny the strengths in their opponents' position and the weaknesses in their own. A more productive way to move the theoretical debate forward (I am not so starry-eyed as to

believe that there is very much likelihood of changes in academic discourse making any difference to how the champions of institutional interests and their attendant squires will make policy) may be to recognize that while proponents of both market and public service structures are concerned to realize a common goal, freedom, one side invokes what Berlin called positive freedom and the other side invokes what he called negative freedom.⁴⁴

Berlin defines negative freedom (or liberty) as 'The area within which the subject . . . is left to do or be what he [sic] is able to do or be, without interference by other persons', whereas positive freedom (or liberty) is 'the source of control or interference that can determine someone to do, or be, this rather than that'.⁴⁵ The extent of negative freedom depends on 'how many choices are open to me (though the method of counting these can never be more than impressionistic)'. The extent of positive freedom ('the wish on the part of the individual to be his own master') is not in principle limited by others but is dependent on the power of an individual (or group) to achieve goals which only her or his (or a group's) own incapacity (rather than duress exercised by others), would prevent her/him (them) from achieving.⁴⁶ Berlin's argument here is fundamentally Kantian and is based on Kant's recognition that humans were disabled by their own incapacities (from which they could be emancipated by other humans) as well as by the duress imposed upon them.

Kant stated (in a passage cited by Habermas) that

Enlightenment is man's release from his self-incurred tutelage. Tutelage is man's inability to make use of his understanding without direction from another. Self-incurred is this tutelage when its cause lies not in lack of reason but in lack of resolution and courage to use it without direction from another. *Sapere aude!* 'Have courage to use your own reason!' – that is the motto of enlightenment.⁴⁷

Thus, Kant argued, social action and social solidarity are necessary to realize what Berlin termed positive freedom. Moreover, because humans are interdependent, the freedom of one is dependent on the manner and degree of the exercise of the freedom of the other 'freedom for the pike is death for the minnows', as Berlin put it.⁴⁸ And Berlin shows how the well intentioned exercise of positive freedom by a group on behalf of its members, the coercion of 'men in the name of some goal (let us say, justice or public health) which they would, if they were more enlightened, themselves pursue' may also become despotic.⁴⁹ Yet although there is a *potential* danger of despotism in the exercise of positive freedom this will not necessarily be the case. The exercise of positive freedom cannot be devalued in relation to negative freedom because of a *potential* danger of harm. Nor can the exercise of negative freedom be disqualified on the

⁴⁴ I Berlin *Four Essays on Liberty* (Oxford: Oxford University Press 1969)

⁴⁵ *Ibid.* pp 121–2

⁴⁶ *Ibid.* pp 130–1

⁴⁷ I Kant 'What is enlightenment?' in *Foundations of the Metaphysics of Morals* (1784) (Indianapolis: Bobbs Merrill 1959) p 85. See Habermas *The Structural Transformation of the Public Sphere* p 104

⁴⁸ Berlin *Four Essays on Liberty* p 124

⁴⁹ *Ibid.* pp 132–3

grounds that it actually (or potentially) harms the capacity to exercise positive freedom. For if negative freedom is subordinated to positive freedom then 'Liberty, so far from being incompatible with authority, becomes virtually identical with it', or, put another way, 'sovereignty of the people could easily destroy that of individuals'.⁵⁰

There can be no doubt that the re-regulation of European broadcasting during the last decade (notably through the European Community's Television without Frontiers Directive, the successive actions of the Competition Directorate of the Commission of the European Communities DG IV, and the Council of Europe's Convention on Transfrontier Television) has significantly extended 'negative freedom'. Viewers have access to more services, broadcasters have more ready access to programme rights, and producers have better access to more markets than ever before. And in contrast to the embattled European bearers of positive freedom in broadcasting – the public service broadcasters – negative freedoms are 'guaranteed' (in so far as agreements can guarantee anything) in a variety of declarations and treaties.⁵¹

If the introduction of new services has led to important increases in viewers' and listeners' 'negative freedom', it has not significantly improved the responsiveness of broadcasting to its consumers, nor done much to extend positive freedom, and the bearers of 'positive freedom' in broadcasting, the public service broadcasters, are increasingly embattled. Proponents of public service broadcasting may be right to insist on the inadequacy of a broadcasting order based on the institutions and doctrines of negative freedom, but the dangers inherent in a regime of positive freedom are no less serious.

Tutelage

Habermas writes that 'Liberation from self-incurred tutelage meant enlightenment. With regard to the individual, this denoted a subjective maxim, namely; to think for oneself . . . enlightenment had to be mediated by the public sphere'.⁵² Here Habermas clearly offers a foothold for proponents of public service broadcasting, but a foothold provided by Kant. Citing Kant's 'What is enlightenment?', Habermas argues that 'For any single individual to work himself out of the life under tutelage which has become almost his nature is very difficult'.⁵³ Clearly proponents of public service broadcasting (from Reith through Pilkington to the neo-Habermasians) have seen it as a mediating institution, in the public sphere, which assists individuals to work themselves out of 'tutelage'.

However, Habermas does not cite other sections of 'What is enlightenment?'. Kant also states that:

Laziness and cowardice are the reasons why so great a portion of mankind, after nature has long since discharged them from

⁵⁰ *Ibid.*, pp 148–160

⁵¹ Article 19 of the Universal Declaration of Human Rights and Article 10 of the European Convention on Human Rights for example, enshrine important aspects of negative communication freedoms. So too does the Treaty of Rome from which the Competition Directorate of the European Community derives its powers. For further discussion of European broadcasting policy see R. Collins, 'In dubious conflict – DG IV and the EBU', *Media Policy Review*, no. 3 (1992).

⁵² Habermas, *The Structural Transformation of the Public Sphere*, p. 104.

⁵³ *Ibid.* See also Kant, 'What is enlightenment?', p. 86.

external direction (naturaliter maiorennnes), nevertheless remains under lifelong tutelage, and why it is so easy for others to set themselves up as their guardians. It is so easy not to be of age. If I have a book which understands for me, a pastor who has a conscience for me, a physician who decides my diet, and so forth, I need not trouble myself. I need not think, if I can only pay – others will readily undertake the irksome work for me.⁵⁴

⁵⁴ Kant 'What is enlightenment?' p. 85

This passage has the authentic smack of Kant's earnest Prussian pietism. It affords little space for fun, diversion or the seductions of being not of age, but stands as a powerful rationale for benevolent social action. The Arnoldian statements of the Directors General of the BBC cited earlier thus fit the Kantian model very well (and there are ominous signs that what has come to be called Birt's 'Himalayan Strategy' – moving the BBC onto the cultural high ground – will do the same). Both the Arnoldian and Kantian approaches rest on the contradiction which lies at the centre of public service broadcasting's emancipatory project. It emancipates on the terms set by the broadcasting elites, rather than on terms set by the community as a whole. For as authentic an element of the core belief system of public service broadcasting as its emancipatory commitment is its disdain for popular taste. As Habermas states:

mass culture has earned its rather dubious name precisely by achieving increased sales by adapting to the need for relaxation and entertainment on the part of consumer strata with relatively little education, rather than through the guidance of an enlarged public toward the appreciation of a culture undamaged in its substance.⁵⁵

⁵⁵ Habermas *The Structural Transformation of the Public Sphere* p. 165

It is easy to see commercial broadcasting as embodying Kant's vision of being not of age, as immersion in a 'book which understands for me'. But we may also see public service broadcasting as an agency through which, willingly, man embraces his tutelage. What more clearly than Pilkington's account of broadcasting exemplifies Kant's notion of 'a pastor who has a conscience for me, a physician who decides my diet'? Pilkington referred to

the Governors' and Members' concern . . . to represent and secure the public interest in broadcasting. It is for them to judge what the public interest is, and it is for this that they are answerable. They must not do so by assessing the balance of opinion on this or that element of programme content, and then adopting the majority view as their own; for as we have already noted, this would be to mistake 'what the public wants' in the misleading sense implied when the phrase is used as a slogan – for the public interest.⁵⁶

⁵⁶ Pilkington Report para 408

Habermas's locution, 'through the guidance of an enlarged public toward the appreciation of a culture undamaged in its substance',

refers, similarly, not to a relationship of equals but to a Pilkingtonian guidance of consumers by guardians away from what Habermas calls 'consumption ready' cultural goods to 'serious involvement with culture'.⁵⁷ And here is the crux of the problem about public service broadcasting enlightenment, the maximization of positive freedom, requires social action and liberation from ignorance ('self-incurred tutelage'), but to think for oneself is to think unconstrained by authority, to be emancipated from a repressive pedagogy. Audiences' rejection of public service broadcasters' offerings cannot be repudiated on the grounds that viewers are not thinking for themselves or are acting under duress even if such rejections are judged as a refusal to be freed from self-incurred tutelage. The contradiction can only be surmounted if audiences *voluntarily* adopt the emancipation (putatively) offered by public service broadcasters. Often they do not, and the crisis of European public service broadcasting is a crisis which has become insistently visible as a consequence of the rapid increase of choice and competition. But we cannot assume that the crisis is *caused* by these circumstances. Proponents of public service broadcasting confront an unresolved problem: how to reconcile their commitment to democracy and emancipation (a public sphere) with the authoritarian nature of broadcasting systems grounded in Kantian (and Arnoldian) doctrines of emancipation from tutelage.

The public service versus the market debate

The perhaps excessively 'theoretical' character of discussion of tutelage above can readily be translated into a concrete mapping of the terrain over which the debate between proponents of public service broadcasting and proponents of the market has flowed. Market theorists argue that 'political markets' are fixed by elites and that 'free' market mechanisms at last free individual consumers to realize their right to express their preferences to suppliers through the price system. Public service advocates argue that the market model of equal and atomized market actors simply camouflages a striking disparity in power between corporate persons and human beings. It is easy enough for commentators on both sides to impute bad faith to their interlocutors.

What is lacking in such arguments is proper evidence. Critics of the market organization of broadcasting, for example, argue that the market undersupplies programming to economically powerless viewers (the undersupply of children's programming is the most striking case) and claim that competition institutes a 'Gresham's Law' in programming whereby vulnerable enterprises, in order to survive, screen programmes which are attractive to viewers but undesirable for reasons of public policy. Thus Hoffman-Riem states

that 'The more heated the battle for ratings, the smaller the chance for the observance of the corresponding duties'.⁵⁸

Empirical work to test Hoffman-Riem's proposition might yield interesting results. Intuitively his argument seems plausible, but striking exceptions spring to mind. Competition in broadcasting can give voice to those who have hitherto been silent: witness the significant rise in television's representation of the experience and circumstances of Northern Ireland's Catholic minority after the introduction of commercial television to the Province – commercial television had a financial incentive to secure an audience from the Catholic population which had formerly been underrepresented by the BBC monopoly.⁵⁹ Moreover libertarians might argue that the effect of such competition (if we grant Hoffman-Riem's contention) is in fact desirable in that it pushes back the boundaries of state censorship and control of viewers' access to information. Only broadcasters threatened by economic circumstances will be desperate enough to challenge state power and extend the boundaries of free expression. A consensus on the appropriateness of the duties vested in broadcasters by political authorities cannot be taken for granted. Garnham's influential *Screen* article of a decade ago framed the key question in the determination of broadcasting policy as 'Public service or the market' The power of this conceptual dualism remains apparent for example, the major contemporary institutional conflict in European broadcasting (between the European Broadcasting Union and the Competition Directorate of the Commission of the European Communities) can very easily be mapped onto this antithesis Yet although there is a clear adversarial level at which these conflicts are played out (such as in the institutional rivalry between public service incumbents and new commercial rivals – (RAI versus Berlusconi, the ARD/ZDF versus RTL+, NOS versus RTL4, Antenne 2/FR 3 versus Canal Plus and TF1, and so on), it is less clear that there is a *necessary* irreconcilability between public service and market principles

In a second article published in 1983 Garnham argued strongly for the superior power of Critical Theory to the prevailing UK leftist orthodoxy of Althusserian Marxism.⁶⁰ It is hard to disagree The subsequent influence of Habermas's writings (I am tempted to say 'writing') on the academic debate on broadcasting policy in Britain testifies both to the accuracy of Garnham's judgement and to the influence of his *Screen* article. The rationale for Garnham's advocacy of Habermas's concept of the public sphere was that it provided a libertarian basis for advocates of public service broadcasting. But its use has also reconfirmed some of the 'profound weaknesses in the analytical tools available within British media studies' which Garnham had originally identified, most notably the cultural elitism which has left public service broadcasting so vulnerable to populist critique and competition.

⁵⁸ W Hoffman-Riem 'Defending vulnerable values: regulatory measures and enforcement dilemmas' in J Blumler *Television and the Public Interest: Vulnerable Values in West European Broadcasting* (London: Sage 1992) p 189

⁵⁹ See R Cathcart *The Most Contrary Region: The BBC in Northern Ireland 1924–1984* (Belfast: Blackstaff 1984)

⁶⁰ N Garnham 'Editorial: Media Culture and Society' vol 5 no 1 (1983)

Keane does recognize the deficiencies of public service broadcasting in this respect, and states that 'Public service media corset audiences and violate their own principle of equality of access for all to entertainment, current affairs and cultural resources in a common public domain'.⁶¹ But Keane's genuflection to the demotic does not lead him to refuse the dualistic problematic of 'public service versus the market' within which his challenging discussion of the media and democracy remains. It is a sad irony that the poor, in whose name so many of the critiques of market allocations in broadcasting are being made, are disproportionately represented among the subscribers to pay-TV. If public service broadcasting was giving the C2 and D social groups what they wanted why would they pay for BSkyB?

UK scholars' selection from the Habermasian inheritance has been very particular and rather unfortunate. From an admittedly contradictory patrimony has been taken the notion of the public sphere and its prioritization of political discourse (inform and educate); what has not been taken is any recognition of the positive role of commercial media. This is to retain the public service versus market antithesis which has not helped proponents of public service broadcasting either to rebut, or to integrate into a theoretical synthesis friendly to their cause, market theorists' compelling critique of public service broadcasting for its susceptibility to elite capture, its waste of resources, and its tendency to lose contact with the needs and desires of its audiences.

This is not to pass over the well-founded complementary critique by advocates of public service broadcasting of broadcasting markets, which equally clearly lend themselves to the capture of broadcasting institutions by corporate power, to an undersupply of programming to economically and politically disempowered audiences, and to the reduction of aggregate welfare through use of the price system to exclude consumers from access to broadcasting services. My point is, rather, that the binary structure of the debate, public service versus the market, has inhibited a recognition that there are two types of freedom, that broadcasting policy should be directed towards the maximization of both positive and negative freedom and that a more fruitful approach to policy analysis may be to constitute public service and the market as non-exclusive categories. And thus to seek a broadcasting policy which maximizes their complementarities and recognizes that each organizing principle may be necessary but neither is sufficient for the realization of public policy goals

Clearly the policy conclusion is that a system which combines both positive and negative freedoms is required. The historical evidence suggests that such a system exists neither in circumstances where public service broadcasting has a monopoly nor in circumstances where commercial broadcasting, is overwhelmingly dominant. A mixed system is required. This may seem an underwhelming

conclusion but it is not one which can be derived from the arguments of either the neo-Habermasians or the market theorists. It is to an analysis of the many different kinds of mixed broadcasting systems that the study of broadcasting policy and institutions should now turn. Rather than continuing to rehearse a sterile debate we should consider how the libertarian goals espoused in the last decade by proponents of both public service and market principles of broadcasting can best be realized. Both the values – notably the concept of freedom – and the methods – notably its dialectical and iconoclastic character – of Critical Theory will be central to this project.

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